

1 okay, go ahead and ask.

2 Q. The second bubble after the first sentence,
3 which is redacted out, you continued, "I don't feel
4 comfortable with someone taking care of my daughter who
5 is looking to throw me under the bus to Steve. Also for
6 a bunch of other reasons, I've been asking to get rid of
7 her for like a month."

8 Is that true?

9 A. That is true.

10 Q. Okay. So you didn't -- you were upset with the
11 nanny for telling Steve that you had drugged him,
12 correct?

13 A. I was primarily upset because she told him that
14 I found out that she was stealing from us. But this --
15 this text message, it can be read in a few ways. Yes,
16 she did tell him that I put Seroquel in his wine, but
17 she also told him that I had told her to say he was a
18 bad dad. I never said that to her. That's part of the
19 reason why I was angry because I never said that to her.
20 She was saying stuff to him that just wasn't true
21 because she was angry that I wanted to fire her.

22 Q. Okay. And you wanted to fire her because she
23 kept throwing you under the bus, right?

24 A. Primarily because she was stealing from us, and
25 when I confronted her, she got very angry. And then

1 Steve still wanted her to work there, and then all this
2 stuff started sequencing out.

3 Q. So when you say that she was "stealing from us,"
4 do you mean she was stealing from Steve?

5 A. She was technically stealing from Steve, but she
6 was giving her hours to me and telling me the amount
7 that she needed to be paid, and I told Steve's financial
8 person. Like he would do bank direct deposits to her,
9 and she was getting paid like -- I was so strung out, I
10 didn't keep track, she was making like \$30,000 a month
11 she was charging us, and she wasn't working that much.

12 Q. So you think she was overcharging?

13 A. Over -- but she was lying about her hours. She
14 was saying she was working more hours than she was, so
15 that's stealing, lying. I don't know, whatever you want
16 to call it.

17 Q. So you're upset that the nanny threw -- you
18 perceived that she was throwing you under the bus, but
19 you weren't upset that about the fact that you had
20 drugged Steve, right?

21 A. I think you're putting words in my mouth.

22 Q. I'm asking you.

23 A. What are you asking me specifically?

24 Q. Well, as they sometimes say, you weren't sorry
25 that you did what you did; you were sorry you got

1 caught, right?

2 A. I wasn't sorry I got caught. I intended to tell
3 Steve about it once he was over his episode. I told
4 every single person, from his doctors, to his mother, to
5 the former police officers, every single person I
6 possibly could, that that's what I had to do. And
7 before that, I got to the ER and begged them for help
8 when he was having episodes. I mean, it's -- I -- yeah.

9 THE COURT: I have a question. In regard to
10 what you -- your concerns regarding the nanny, did
11 you express those concerns to anyone else other than
12 Dr. Gopal?

13 THE WITNESS: In terms of her stealing or...

14 THE COURT: That you didn't feel comfortable
15 with her taking care of your daughter.

16 THE WITNESS: I think I have texts, actually,
17 myself that I sent to the security guards. They were
18 trying to help me find the new nanny to replace her,
19 and I told them that I didn't trust her, and I
20 thought she was stealing from him. So I definitely
21 told them.

22 THE COURT: Okay. Thank you.

23 BY MR. WALLER:

24 Q. Okay. So you were really upset that she told on
25 you?

1 A. I was upset with her in general.

2 Q. Okay. But --

3 A. And she was saying mistruths. It wasn't
4 specific to the Seroquel. A lump sum of things that she
5 said to him that just weren't truthful, and she was
6 causing a lot of tension and conflict in the house.

7 Q. Okay. And Steve didn't want to fire her, right?

8 A. Yeah, and I'm not really sure why. You know,
9 I'm not -- I know he had her sign a NDA to never speak
10 badly about him, but I don't know --

11 MR. WALLER: Move to strike.

12 THE COURT: Motion to strike is granted.

13 BY MR. WALLER:

14 Q. You did not mention in here, in this text, that
15 you felt threatened by Steve, did you?

16 A. I told Dr. Gopal in discussion all about that,
17 when I went to see him in private sessions. Yes, he
18 knew about that.

19 THE COURT: So careful, if you don't want to
20 waive your privilege, what you say to Dr. Gopal. And
21 if you continue with what you told him, then you're
22 going to waive your privilege, and he'll be able to
23 get into that arena. So I'm going to caution you.

24 THE WITNESS: Okay.

25 THE COURT: I'm going to caution Mr. Waller

1 not to explore that area of examination, with that
2 caveat.

3 BY MR. WALLER:

4 Q. The question I'm asking is: In this text
5 message -- these two text messages, you say nothing
6 about feeling threatened or that you were doing it to
7 defend yourself, right?

8 A. This is a portion of a conversation. I have no
9 idea what I said before then or after this.

10 Q. And your -- are you still answering? I'm sorry.

11 A. No. I'm just reading through it to make sure
12 I'm --

13 Q. In your position -- or your testimony today is
14 that the nanny actually conspired with you to drug
15 Steve, right?

16 A. She helped me, yes, and that was part of the
17 reason I was angry because she wasn't representing the
18 situation correctly because she was assisting me. And I
19 wouldn't call it conspiring because it was like an
20 emergency situation. It's not like we were sitting
21 around, planning it, you know, like, When can we get
22 him? It was like emergency, like we don't know what to
23 do. It was not -- I wouldn't think it was -- would be
24 called a conspiracy.

25 Q. And both times, the same thing happened,

1 correct?

2 A. Both times --

3 Q. That you drugged him.

4 A. Both times, I covertly gave him Seroquel?

5 Q. Yes.

6 A. Both times, the nanny was there and helped me
7 and the security guard. And I remember them mostly from
8 prior testimony on -- there's one occasion that I
9 remember very clearly because the -- one of the security
10 guards, Brian Crutcher, who is a former Bay Area police
11 officer --

12 MR. WALLER: Move to strike.

13 THE COURT: Motion to strike is granted.

14 MR. WALLER: Okay.

15 BY MR. WALLER:

16 Q. You don't have medical training, correct?

17 A. No. I'm not a doctor.

18 Q. But it was your analysis that -- that you could
19 administer drugs to Mr. Russell to help with whatever
20 the issue was?

21 A. I was doing my best to protect myself and my
22 child in an insane situation, from a person that was
23 extremely unpredictable and unstable.

24 Q. While several former police officers were in the
25 apartment?

1 A. And they were there at other times when he
2 displayed abusive behavior, and they didn't stop him.
3 Their job was to protect him, not me and the baby. And,
4 unfortunately, their priority was to protect him. But I
5 was still afraid of him, yes, even when they were there,
6 if that's what you're asking. And I was afraid for our
7 daughter.

8 Q. And you believe that former police officers --
9 retired police officers or former police officers would
10 ignore any physical threats to you or to your baby?

11 A. I think if it was really serious, they would,
12 but if it was -- I don't know how to answer that
13 question. I don't.

14 Q. And by the way, it's not like you shot him with
15 a tranquilizer gun, right, that he's just going to go
16 down. This is something that takes a while to take
17 effect, correct?

18 A. No, no, not at all. It's like an antihistamine,
19 like Benadryl, similar to Benadryl. It's a sleeping
20 medication. So, no, it doesn't, like, knock you out.
21 It makes you sleepy.

22 Q. Is that its primary purpose, or is sleeping an
23 off-label use for Seroquel?

24 A. Seroquel in small doses is used to help people
25 sleep. I don't know the off-label, on-label usage,

1 but...

2 Q. Did you ever do a search on the Internet for how
3 much is a lethal dose of Seroquel, what is the deadly
4 dosage for an adult?

5 A. Absolutely not.

6 Q. Now, you testified earlier that you had not just
7 text messages, but you also had photos on your phone
8 that, after your cell phone broke, were backed up onto
9 Steve's computer, correct?

10 A. Can you say that again?

11 Q. Yes. That was a terrible question.

12 You testified earlier that not only were text
13 messages that had been on your cell phone backed up to
14 Steve's computer, but also photos, right? You said
15 earlier that a bunch of your photos from your photo
16 library ended up in Steve's possession, correct?

17 A. It was an assumption. I don't know how to
18 answer that question, honestly. I just knew that he had
19 data that I didn't give to him.

20 Q. That what?

21 A. I knew he had data, like photos and alleged
22 texts, things he was calling text messages -- some of
23 them were real, and I recognize they were real -- that I
24 didn't give him, and I didn't know how he got it, and
25 his security guards insinuated that he was able to get

1 that when he broke my devices.

2 Q. And the information ended up on his computer?

3 A. I don't know where it ended up, and I don't know
4 information he got, I don't know the truth. It's all
5 hearsay, what I'm telling you. I don't know.

6 Q. Just look at 73. All I'm asking you is, is this
7 a screenshot that you took and had saved in your photo
8 library?

9 A. Absolutely not. I've never even heard of the
10 website called sofa.com.

11 Q. Okay. So you never did an Internet search about
12 how much is a lethal dose of Seroquel?

13 A. I would not consider that I would do this, but I
14 definitely recognize that I did not do this, no.

15 Q. Do you agree that that's the kind of thing
16 somebody might search if they were giving it secretly to
17 another person?

18 A. I think they might search it if they wanted to
19 hurt themselves -- that's how I look at it -- not that
20 they want to hurt someone else.

21 MR. WALLER: Okay. Your Honor, I just need
22 three minutes -- not to finish, but I didn't put the
23 exhibit number, and I've got to figure out which
24 exhibit number --

25 THE COURT: Very well.

1 MR. WALLER: -- I need to reference here. I
2 apologize.

3 BY MR. WALLER:

4 Q. Can you please look at -- I want to go back to
5 the testimony that you gave earlier about the fact that
6 you said Steve beat you unconscious, okay? That's a
7 serious allegation; would you agree?

8 A. I said in my prior testimony, Mr. Waller, that
9 I --

10 Q. What prior testimony?

11 A. -- did not have full recollection of what
12 happened. So I already addressed that because that
13 would -- I never said that he beat me unconscious. I
14 said I didn't know because I can't remember the entire
15 incident.

16 Q. Okay. So now what you're saying is that because
17 you don't remember the incident, you're making an
18 assumption that he beat you unconscious?

19 A. That's absolutely not what I just said.

20 Q. Then what did you say?

21 A. I said I'm saying that I don't remember the
22 whole incident. My brother reported that -- to the
23 police I was unconscious. There was a point of time in
24 the incident I don't remember. It was early in the
25 morning. I have never said to anybody Steve beat me

1 unconscious, but I just don't know. I don't remember.

2 Q. So your brother was not in California on
3 March 8th with you, right?

4 A. No, he wasn't, but --

5 Q. So if he was under impression that Mr. Russell
6 had beaten you unconscious, it only could have come from
7 you telling him that, correct?

8 A. Maybe because I couldn't remember things. I
9 already said that. Like the way I presented to him, he
10 assumed that I was being unconscious. I don't really
11 know why he said that. I mean, he could testify or else
12 you could ask him.

13 Q. It sounds to me -- and please correct me if I'm
14 wrong, but now you're not saying that Steve beat you
15 unconscious; is that correct?

16 A. I'm saying I don't know. I'm saying I don't
17 know, Mr. Waller. I can't say yes or no.

18 Q. So you don't know, but you -- okay. Let's do it
19 this way. Please look at Exhibit 1, paragraph 8. I do
20 not want you to read it out loud, just to yourself,
21 please.

22 A. Are you talking about on page 5?

23 Q. No. Page 18. Exhibit 1. Let me make sure I'm
24 in the right place.

25 THE COURT: Paragraph 18, page 5.